

MASTER SAAS ENTERPRISE SERVICE AGREEMENT

1. SERVICES AND ACCESSIBILITY

Provider grants Customer a non-exclusive, non-transferable right to access and use the SaaS Platform during the Subscription Term.

2. SERVICE LEVEL AGREEMENT (SLA)

Provider guarantees a 99.9% monthly Service Uptime, excluding scheduled maintenance. Service credits of 10% monthly fee apply for downtime.

3. LIMITATION OF LIABILITY

IN NO EVENT SHALL EITHER PARTYS AGGREGATE LIABILITY EXCEED THE TOTAL FEES PAID BY CUSTOMER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

4. INTELLECTUAL PROPERTY

Customer retains all right, title, and interest in Customer Data. Provider retains all rights to the SaaS Platform and underlying software.

5. GOVERNING LAW AND JURISDICTION

This Agreement shall be governed by the laws of the State of Delaware, without regard to conflict of law principles.